

3.4 Who is required to submit ENS?

Responsibility for ensuring the ENS is lodged lies with the carrier of the goods – this will be the shipping line or airline that actually carries the goods to Ireland. The ENS is required only in the case of goods arriving directly into Ireland from outside the EU. A third party may, with the carrier's agreement, lodge the ENS. ICS2 allows for multiple filing, meaning that Master and House filings can be submitted, allowing for the party with the lowest level of detail (such as the Buyer and Seller) to submit that directly to ICS2. Arrangements should be in place to ensure that each party responsible is aware of the role they will play. To note, this is currently only available for Air and Maritime modes of transport, multiple filing for Road will be available at the end of 2026.

ENS for Postal consignments must now also be declared with the introduction of ICS2. The Postal Authority in Ireland is An Post. They will file a certain element of the data and then the Carrier submits the Master level data.

3.5 When is an ENS required?

Safety and security controls for imports will be carried out by Customs Authorities at the first point of arrival of goods into the EU.

The Carrier submits the ENS filing to the central EU ICS2 STI (there is also a Trader Portal EU-CTP if the Carrier wishes to use rather than a system-to-system connection)

The Customs Office of First Entry declared determines who the Responsible Member State (RMS). Any other MS referenced on the filing, for example by an EORI number or address field deems them to be an Involved Member State (IMS).

The central EU ICS2 system will issue a message to the RMS and any IMS as a 'request for Risk Analysis'

Accordingly, here in Ireland an ENS will be required in respect of imported goods where Ireland is the first point of arrival of those goods into the EU i.e. direct imports from non-EU countries. In this regard, it is important that all stations that have direct import traffic from a non-EU country are aware of that traffic and ensure that the carrier lodges or arranges for the lodgement of ENSs in respect of same.

Indirect imports i.e. those that are imported via another Member State and subsequently transported to Ireland will be subject to safety and security risk controls by Customs Authorities in the country of the first place of arrival of the goods into the EU.

Safety and security controls will apply to the arrival of goods into the customs territory of the Union by land, sea and air.